

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/26/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L21-06068

CASE NAME: CAPITAL ONE BANK (USA),N.A. VS. JEFFREY KRATO

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE BANK (USA),N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 3/17/26, but the Plaintiff had not properly noticed the Defendant, so this court continued the Motion to 5/26/26, 9am.

The court directed the Plaintiff to file the Order stemming from the continuance on 3/17/26.

Though the Motion remains unopposed, as of this writing, Plaintiff has not filed the Order, nor has Plaintiff filed anything reflecting that Defendant has been served with notice of this Motion.

Disposition

Plaintiff's Motion will be vacated for lack of notice.

The court will not continue it, since this is now the second setting where Plaintiff has failed to properly serve the Defendant with notice.

2. 9:00 AM CASE NUMBER: L23-06066

CASE NAME: JPMORGAN CHASE BANK N.A. VS. MERRY SAMATRA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is opposed, to some extent, in that counsel for Defendant is asking for a continuance on the basis that he would like an opportunity for his client to resume payments according to the agreement.

Analysis

Mail service was completed at an address for counsel for Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,734.57, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,322, with the last payment occurring on 10/31/25.

Costs are \$0.

Defendant's response to this Motion does not amount to any sort of defense or argument against the validity of Plaintiff's claim. Moreover, to the extent that the Defense is asking for a continuance, the court does not find good cause for the request. The Defense is not asking for my time to respond to the Motion; rather, it is conceding the merits and is effectively asking the Plaintiff not to enforce their agreement.